ANNEXURE - F1

Association of Planters of Kerala

P.B No : 63, 3rd Floor, 3D, Capitol Centre, Opp.Govt. Secretariat
M.G. Road, Thiruvananthapuram - 695 001

GSTIN : 32AABCA9778K1ZA

CIN : U91200KL1939NPL000037

CIRCULAR No. 2008
11th September 2023

Minimum Wages – Draft Notification

In connection to this office **Circular Nos. (1) 1999 dated 06.06.2023, (2) 2000 dated 15.06.2023, (3) 2001 dated 26.06.2023 & (4) 2003 dated 28.06.2023,** this is to inform you that, the Labour & Skills (E) Department, Government of Kerala has published the draft Minimum Wage Notification for the plantation sector vide Notification No. LBRD-E1/73/2023-LBRD dated 6th September 2023. The draft Notification is attached herewith for your reference and implementation.

Encl: a/a.

SECRETARY.

Copy to:

All Members
All Member Estates
The Executive Committee
The Dist. Associations
The President, UPASI
The Secretary General, UPASI

The Chairmen, PAT and KPA
The Secretaries, PAT and KPA
M/s. Joseph & Kurian
M/s. Joseph & Markos
M/s. Menon & Pai

KANNAN DEVAN HILLS PLANTATIONS COMPANY PVT. LTD. KDHP House Munnar P.O. Kerala-685612

Phone : 0471-2461793, E-mail : apk@planterskerala.com, Web : www.planterskerala.com

ANNEXURE - F1

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കേരള സർക്കാർ
Government of Kerala
2023

Regn.No. KERBIL/2012/45073
dated 05-09-2012 with RNI
Reg No.KL/TV(N)/634/2021-2023

കേരള ഗസറ്റ്
KERALA GAZETTE
അസാധാരണം
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്
PUBLISHED BY AUTHORITY

വാല്യം 12
Vol. XII

തിരുവനന്തപുരം,
വെള്ളി
Thiruvananthapuram,
Friday

2023 സെപ്റ്റംബർ 08
08th September 2023
1199 ചിങ്ങം 23
23rd Chingam 1199
1945 ഭാദ്രം 17
17th Bhadra 1945

നമ്പർ
No.
2914

GOVERNMENT OF KERALA

Labour and Skills (E) Department

NOTIFICATION

No.LBRD-E1/73/2023-LBRD. *Dated, Thiruvananthapuram, 6th September, 2023*
21st Chingam, 1199.

The following proposal regarding the revision of minimum rates of wages which the Government of Kerala proposes to make in exercise of the powers conferred by clause (b) of sub-section (1) of section 3 of the Minimum Wages Act, 1948 (Central Act 11 of 1948) read with clause (b) of sub-section (1) of section 5 thereof and in supersession of the notification issued under G. O. (P) No. 24/2021/LBR. dated 16th February, 2021 and published as S.R.O. No.183/2021 in the Kerala

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Kerala-685612

Gazette Extraordinary No.763 dated 16th February, 2021, payable to the workers employed in Plantation Sector in the State of Kerala, as specified in the Schedule annexed hereto are hereby published for the information of all persons likely to be affected thereby as required by clause (b) of sub-section (1) of section 5 of the said Act.

Notice is hereby given that the said proposal will be taken up for consideration on or after two months from the date of publication of this notification in the official Gazette and that the objections and suggestions, if any, that may be received from any person with respect to the said proposal on or before the time limit specified above, will be considered by the Government. All such objections and suggestions shall be addressed to the Secretary to Government, Labour and Skills (E) Department, Government Secretariat, Thiruvananthapuram - 695 001.

SCHEDULE

TEA PLANTATIONS

1. Time Rated Work

	Minimum Time Rate (Basic Wages) ₹
(a) Field Workers	349.21
(b) Factory Workers	352.46

For this purpose the term "factory" means any place where a manufacturing process is carried out irrespective of the number of workers employed therein.

2. Piece Rated Work

(A) Hand Plucking

a) Standard Output : (1) In the months of January, February and August - 16 Kgs of tea leaves harvested per day.

: (2) In the remaining months of the year 21 Kgs of tea leaves harvested per day.

b) Guaranteed Time Rate : Rs. 209.53 per day.

c) Minimum Piece Rate : In addition to the guaranteed time rate the workers in Tea plantations shall be paid piece rate as follows.

(1) Rs. 8.736 per Kg for the first 16 Kgs of harvested tea leaves in the months of January, February and August.

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(2) Rs. 6.656 per Kg for the first 21 Kgs of harvested tea leaves in the remaining months of the year.

(3) 80 paise per Kg shall be paid for the next 14 Kgs above the standard output and 110 paise per Kg for the next 14 Kgs and thereafter 150 paise per Kg.

d) Adjustments of piece rates : If the plucking average of an estate is less than the standard output, in a month, then the standard output shall be revised as follows and wages shall be paid. The plucking average rate of that month in the said estate after deducting 10% shall be fixed as standard output and then wages can be calculated. Minimum price rate shall be calculated on the basis of revised standard output. A plucker shall be entitled to get this rate for the leaves harvested on every day of the said month.

(B) Shear Plucking

a) Standard Output : (1) In the months of January, February and August - 16 Kgs of tea leaves harvested per day.

: (2) In the remaining months of the year 27 Kgs of tea leaves harvested per day.

b) Guaranteed Time Rate : Rs. 209.53 per day.

c) Minimum Piece Rate : In addition to the guaranteed time rate, the workers in tea plantations shall be paid piece rate as follows.

(1) Rs. 8.736 per Kg for the first 16 Kgs of harvested tea leaves in the month of January, February and August.

(2) Rs. 5.177 per Kg for the first 27 Kgs of harvested tea leaves in the other months of the year.

(3) 80 paise per Kg shall be paid for the next 14 Kgs above the standard output and 110 paise per Kg for the next 14 Kgs and thereafter 150 paise per Kg.

d) Adjustments of piece rates : If the plucking average of an estate is less than the standard output, in a month, then the standard output shall be revised as follows and wages shall be paid. The plucking average rate of that month in the said estate after deducting 10% shall be fixed as the standard output then wages can be calculated. Minimum price rate shall be calculated on the basis of revised standard output. A plucker shall be entitled to get this rate for the leaves harvested on every day of the said month.

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3. Supervisors & Selected Special Categories

Category	*Scale of Pay*
(1)	(2)
1. Supervisors 2. Mechanics 3. Electricians 4. Wireman 5. Laboratory Technician 6. Fitters 7. Drivers (Lorry/Tractor/Ambulance/ Car/Jeep/Engine)	10934-49-11228-55-11558-61-11924-68-12332-75-12782-83-13280-92-13832-101-14438-111-15104

4. Special Categories

1. Carpenters 2. Masons 3. Blacksmiths 4. Midwives 5. Teachers in Schools in Plantations which are not recognized and do not receive any grant from the Department of Education 6. Balasevikas and those doing other similar works 7. Medical Orderly (Servant) 8. Ward Boy & Ward Girl	10708-49-11002-55-11332-61-11698-68-12106-75-12556-83-13054-92-13606-101-14212-111-14878

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9. Plumbers 10. Pump Operators (including workers doing atleast some maintenance work) 11. Tappal man 12. Estate Office Peon 13. Permanent Cook in Hospitals	10708-49-11002-55-11332-61-11698-68-12106-75-12556-83-13054-92-13606-101-14212-111-14878

5. Creche Attendants : 10578-49-10872-55-11202-61-11568-68-11976-75-12426-83-12924-92-13476-101-14082-111-14748

SCHEDULE- II

RUBBER PLANTATIONS

1. Time Rated Work

	Minimum Time Rate (Basic Wages) ₹
(a) Field Workers	429.21*
(b) Factory Workers	434.08

Tapping workers shall be given a wage differential of Rs.7/- per day.

*As per the decision of the Plantation Labour Committee dated 15.12.1966, the tapping task of rubber trees has been fixed as 400 based on the recommendation of the Central Rubber Plantation Wage Board approved by Government of India vide resolution WB-8(18)/66 dated 29th September, 1966.

Additional Incentive

A Rubber Tapper who taps more than the tapping task fixed, then he will get an Additional Incentive of 60 paise per tree. All statutory benefits are applicable to the above incentive.

2. (i) The classification of Rubber plantations and standard output for each category is given below:-

	Class	*Standard Output*
Class-1	Annual yield below 170 Kgs	2 Kgs per day
Class-2	Annual yield from 171 Kgs to 270 Kgs	4 Kgs per day
Class-3	Annual yield from 271 Kgs to 400 Kgs	6.5 Kgs per day
Class-4	Annual yield above 400 Kgs	8 Kgs per day

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(ii) For the purpose of calculation of annual yield, the yield obtained from normal tapping for 6 days per week will be taken in to account.

(iii) One hundred trees will be reckoned as one acre for the classification of Rubber Plantations.

3. Plantations belonging to class 1, 2 and 3 shall be paid Rs.5.25 per kg of latex and for plantations belonging to class 4, Rs.7.25 per kg of latex shall be paid as over kilo rate.

4. The over kilo rate for latex (ഒട്ടുപാൽ) will be Rs. 1.60 per kg.

5. The guaranteed time rate shall be Rs. 257.53 per day basic wages.

6. In addition to the guaranteed time rate, the piece rate mentioned below shall be paid to each class of Plantations.

Class-1	Rs. 85.950 per Kg
Class-2	Rs. 42.975 per Kg
Class-3	Rs. 26.446 per Kg
Class-4	Rs. 21.488 per Kg

7. Supervisors and Selected Special Categories

Category	*Scale of Pay*
(1)	(2)
1. Supervisors 2. Mechanics 3. Electricians 4. Wireman 5. Laboratory Technician 6. Fitters 7. Drivers (Lorry/Tractor/Ambulance/ Car/Jeep/Engine)	13409-79-13883-85-14393-91-14939-98-15527-105-16157-113-16835-122-17567-131-18353-141-19199

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8. Special Categories

1. Carpenters 2. Masons 3. Blacksmiths 4. Midwives 5. Teachers in Schools in Plantations which are not recognized and do not receive any grant from the Department of Education 6. Balasevikas and those doing other similar works 7. Medical Orderly (Servant) 8. Ward Boy & Ward Girl 9. Plumbers 10. Pump Operators (including workers doing atleast some maintenance work) 11. Tappal man 12. Estate Office Peon 13. Permanent Cook in Hospitals	13148-79-13622-85-14132-91-14678-98-15266-105-15896-113-16574-122-17306-131-18092-141-18938

9. Creche Attendants : 12978-79-13452-85-13962-91-14508-98-15096-105-15726-113-16404-122-17136-131-17922-141-18768

SCHEDULE-III
COFFEE PLANTATIONS

1. Time Rated Work

Minimum Time Rate (Basic Wages) ₹
349.21

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In addition to basic wages of Rs. 349.21/-, Rs. 5/- per day will be paid as special allowance in single crop coffee plantations. Other statutory benefits will not be applicable to this.

2. Piece Rated work

For piece rate work above 60 kilogram, Rs.1.50/- per kg shall be paid as over kilo rate.

3. Supervisors and Selected Special Categories

Class	*Scale of Pay*
(1)	(2)
1. Supervisors 2. Mechanics 3. Electricians 4. Wireman 5. Laboratory Technician 6. Fitters 7. Drivers (Lorry/Tractor/Ambulance/ Car/Jeep/Engine)	10934-49-11228-55-11558-61-11924-68-12332-75-12782-83-13280-92-13832-101-14438-111-15104

4. Special Categories

1. Carpenters 2. Masons 3. Blacksmiths 4. Midwives 5. Teachers in Schools in Plantations which are not recognized and do not receive any grant from the Department of Education 6. Balasevikas and those doing other similar works 7. Medical Orderly (Servant)	10708-49-11002-55-11332-61-11698-68-12106-75-12556-83-13054-92-13606-101-14212-111-14878

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8. Ward Boy & Ward Girl 9. Plumbers 10. Pump Operators (including workers doing atleast some maintenance work) 11. Tappal man 12. Estate Office Peon 13. Permanent Cook in Hospitals	10708-49-11002-55-11332-61-11698-68-12106-75-12556-83-13054-92-13606-101-14212-111-14878
5. Creche Attendants :	10578-49-10872-55-11202-61-11568-68-11976-75-12426-83-12924-92-13476-101-14082-111-14748

SCHEDULE- IV
CARDAMOM PLANTATIONS

1. Time Rated Work

	Minimum Time Rate (Basic Wages) ₹	
	* 378.21	349.21

(*The workers in single crop cardamom plantations will get higher rate of wages.)

2. Supervisors and Selected Special Categories

Class	*Scale of Pay*
(1)	(2)
1. Supervisors 2. Mechanics 3. Electricians 4. Wireman 5. Laboratory Technician 6. Fitters 7. Drivers (Lorry/Tractor/Ambulance/ Car/Jeep/Engine)	11834-64-12218-70-12638-76-13094-83-13592-90-14132-98-14720-107-15362-116-16058-126-16814

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3. Special Categories

1. Carpenters 2. Masons 3. Blacksmiths 4. Midwives 5. Teachers in Schools in Plantations which are not recognized and do not receive any grant from the Department of Education 6. Balasevikas and those doing other similar works 7. Medical Orderly (Servant) 8. Ward Boy & Ward Girl 9. Plumbers 10. Pump Operators (including workers doing atleast some maintenance work) 11. Tappal man 12. Estate Office Peon 13. Permanent Cook in Hospitals	11588-64-11972-70-12392-76-12848-83-13346-90-13886-98-14474-107-15116-116-15812-126-16568

4. Creche Attendants : 11448-64-11832-70-12252-76-12708-83-13206-90-13746-98-14334-107-14976-116-15672-126-16428

For monthly rated workers working in mixed crop plantations, the scale of pay mentioned as per Schedule I and III for Tea and Coffee plantations shall be applicable.

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GENERAL CONDITIONS (APPLICABLE TO ALL CROPS)

I. Fitment : (Applicable to monthly waged Supervisors and Selected Special Categories, Other Special Categories and Creche Attendants in all crops)

When the salary is refixed in Tea, Rubber, Coffee and Cardamom plantations (mixed crop), the Supervisors, selected categories shall be given Rs.1372/- and special categories and creche attendants shall be given Rs.1328/- as fitment benefit. When the salary is refixed, the pay shall be fixed nearest higher stage in the pay scale.

II. Job Differential

The following categories of workers will be eligible for job differential at the rate of Rs. 3.25 per day.

1. Pruners
2. Workers spraying pesticides (including mixing workers).
3. Tinkers
4. Telephone Operators
5. Dressers
6. Painters
7. Cooks
8. Sweepers
9. Tappal man
10. Peons
11. Factory/Field/Gate Watchmen
12. Greasors
13. Cleaners
14. Porters
15. Foresters
16. Tea Chest makers
17. Vehicle Attenders
18. (a) Workers employed in Smoke House for drying and processing cardamom on days on which they are actually employed for such work.
    (b) Workers employed in actual regulation of shade in Cardamom Plantations on days on which they are employed in such work.

Note :- Pruning workers in Cardamom Plantations will be paid a job differential at the rate of 50 paise per day on all working days throughout the year.

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III. Service Weightage

1. Daily waged Workers

(i)	upto 5 years	Nil
(ii)	Above 5 years and upto 10 years	125 paise
(iii)	Above 10 years and upto 15 years	175 paise
(iv)	Above 15 years and upto 20 years	230 paise
(v)	Above 20 years	280 paise

2. Monthly waged Workers

(i)	upto 5 years	Nil
(ii)	Above 5 years and upto 10 years	One Additional Increment
(iii)	Above 10 years and upto 15 years	Two Additional Increment
(iv)	Above 15 years and upto 20 years	Three Additional Increment
(v)	Above 20 years	Four Additional Increment

Note :- An employee will be eligible for service weightage on completion of prescribed years of service from the date of joining in the said service.

3. The proposed granting of service weightage included in Sl.Nos. 1 and 2 subject to the final judgment of the Hon'ble Supreme Court in the Special Leave Petition (C) filed by the State of Kerala against the judgment dated 14.11.2019 of the Hon'ble High Court in WP (C) No.26803/17.

IV. Dearness Allowances

The basic wages mentioned above are equated to 2050 points of the Consumer Price Index Number (Base:1970=100 series) published for Ernakulam Centre. The workers shall be eligible for Dearness Allowance for the increase in every point above 2050 points in the average Consumer Price Index Number for Ernakulam Centre for the quarter year immediately preceding the current quarter year.

The Field workers will be paid seven paise per point per day and the Supervisors and Special Categories of employees will be paid Dearness Allowance at the rate of Rs. 2.10 for increase over 2050 points in the Consumer Price Index Number published for Ernakulam Centre for the previous 3 months.

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The above Dearness Allowance is subject to adjustments on 1st January, 1st April, 1st July and 1st October of every year on the basis of the average Consumer Price Index Number published for Ernakulam Centre for the previous three months beginning 1st July, 1st October, 1st January and 1st April respectively.

V. Employment Protection

The minimum rates of wages notified above are based on the assurance that employers in Tea and Rubber Plantations will provide work for their workers throughout the year. If the employers are unable to provide such employment, the workers are entitled to get above minimum wages on days except when they are voluntarily absent from work. But the obligation of the employer is only to offer some kind of work connected with the plantations and workers who refuse to accept that work will naturally lose their right to get the wages in that particular day.

VI. Protection of Higher Wages

If the employees in any establishment are in receipt of wages higher than the rates fixed in the schedule, they shall be entitled to get such higher wages.

VII. The wage rates as per this notification shall be effective from 1st January 2023.

VIII. The arrears to be paid under this notification, if not disbursed till date, shall be paid on or before 30th September 2023.

By order of the Governor,
AJIT KUMAR
Secretary to Government.

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THE UNITED PLANTERS' ASSOCIATION OF SOUTHERN INDIA

Post Box No.11
"Glenview"
Coonoor – 643 101

Tel: 0423- 2230270
Fax: 0423-2232030
E-Mail: irpr@upasi.org

Ref: LD/UPASI-ESUSI ESS/2023 2nd August 2023

- **ALL PLANTING MEMBERS**
- **MEMBER ESTATES**

Dear Sirs,

SETTLEMENT ON STAFF TERMS

As members are aware, the last UPASI/ESUSI Settlement dated 06-08-2020 on Estate Staff terms expired on 31-12-2022 and negotiations with ESUSI for a fresh settlement were going on for quite some time for arriving at a fresh settlement. We are now pleased to inform that at the last round of negotiations held on 27-07-2023 at Kochi, a settlement with ESUSI was arrived at. The terms of the settlement shall come into effect from 01-01-2023. A copy of the settlement (**Annexure I**) is enclosed herewith for implementation by members from 01-01-2023.

The following points may be noted for implementing the terms of the settlement:

1. Grades and Scales of Pay (Clause 2):

The Grades and Scales of pay have been revised after merging the Dearness Allowance paid as on 31-12-2022 under the last Settlement up to 370.46 points of the average All India CPI (2001=100) with the basic salaries as on 31-12-2022.

2. Revision of Basic Salary and Fitment Increase [Clause 3 (a)]:

The revised basic pay of an individual staff as on 01-01-2023 has to be arrived at as follows:

17.50% (Seventeen and a half per cent) increase on his/her total salary consisting of Basic Pay, Personal Pay, if any, and Dearness Allowance drawn as on 31-12-2022 has to be first ascertained. This amount is then added to

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the Basic Pay, Personal Pay, if any, and the D.A. drawn by him/her as on 31-12-2022 and fitted into the applicable revised scale. If the resultant figure does not coincide with an exact incremental step in the revised scale applicable to him/her, he/she will be fitted in the next higher incremental step. However, if the revised basic salary after fitment exceeds the maximum of the revised scale, the excess amount will be given as a personal pay (Pl. ref. Illustration No.III).

A few illustrative examples are given in the **Annexure-II.**

3. Dearness Allowance (Clause 4 of Settlement):

Since the Dearness Allowance up to 370.46 points of the All India CPI No (Base 2001=100), has been merged with Basic Pay, the future adjustment of D.A. will be for variation over and above 370.46 points. Any variation from 370.46 points will be adjusted at the following per point rates:

	Per point/p.m.
Staff in All Crops – Large Estates	: Rs.32 per point
Staff in All Crops – Medium Estates	: Rs.28 per point
Staff in All Crops – Small Estates	: Rs.28 per point

Consequent to the merger of 370.46 points with the basic salaries, the revised D.A. payable for the quarter January/March, April/June and July/September 2023 is given below:

	Jan/March 2023		April/June 2023		July/Sep 2023	
	D.A. points	Amount Rs.	D.A. Points	Amount Rs.	D.A. Points	Amount Rs.
Staff in All Crops (Large Estates)	5.29	169.30	10.95	350.40	12.39	396.50
Staff in All Crops (Medium Estates)	5.29	148.10	10.95	306.60	12.39	346.90
Staff in All Crops (Small Estates)	5.29	148.10	10.95	306.60	12.39	346.90

4. Categorisation and Automatic Progression (Clause 5):

There will be no change to the rules relating to categorization but consequent to the revision of the scales of pay, the basic pay steps for automatic progression from lower grade to higher grade, with the additional Efficiency Bar (wherever applicable) have also been correspondingly enhanced under Clause 5.

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5. Other Clauses:

The Leave Travel Concession (Clause 6), Annual Leave T.A (Clause 7), Batta (Clause 8) have also been increased. With regard to T.A on transport charges on retirement (Clause 9), the allowance is fixed at the rate of Rs.50/- per km subject to minimum of Rs.3,000/- and maximum of Rs.10,000/-. The above Clauses are self explanatory.

6. National & Festival Holidays:

The grant of National & Festival holidays to estate staff shall henceforth be strictly in accordance with the respective State legislations governing the subject in Karnataka, Kerala and Tamil Nadu [Ref Clause 12(b) of the settlement].

7. Period of Settlement:

The period of validity of settlement dated 27-07-2023 is from 01-01-2023 to 31-03-2026 (39 months).

8. Arrears (Clause 11):

The arrears of salary payable under the settlement shall be paid on or before 30-11-2023.

If members require any clarification on any of the clauses of the settlement, please write to us.

Thanking you,

Yours faithfully,

(R.SANJITH)
SECRETARY GENERAL

Copy to:

- Executive Committee
- Labour Liaison Committee
- Secretaries, State PAs/DPAs.

Encls:

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3

Annexure-I

Memorandum of Settlement

Parties to the Dispute:

The workmen belonging to the category of Staff and the Managements of Plantation Estates who are Members of:

1. The United Planters' Association of Southern India (UPASI)
2. The Association of Planters of Kerala (APK)
3. The Karnataka Planters Association (KPA) and
4. The Planters' Association of Tamil Nadu (PAT)

Representing Employers:

Representing UPASI:

1. Mr.Jeffry Rebello, President, UPASI
2. Mr.C.Shreedharan, Vice President, UPASI
3. Mr.R.Sanjith, Secretary General, UPASI

Representing APK:

4. Mr.Prince Thomas George, Vice Chairman, APK
5. Mr.B.P Kariappa
6. Mr.S.B.Prabhakar
7. Mr.Gilbert D'Souza
8. Mr.Paulson Kurian

Representing KPA:

9. Mr.Mahesh Shashidhar, Chairman, KPA
10. Mr.P.K.Mathew
11. Mr.D.Anil Savur, Secretary, KPA

Representing PAT:

12. Mr.T.J.Varghese Vaidyan, Chairman, PAT
13. Mr.Pradeep Sukumar, Secretary, PAT
14. Mr. Murali B Padikkal
15. Mr. N.S. Vinod Kumar

Representing Workmen:

1. Mr.P.R.Thomas, Working President, ESUSI

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2. Mr.M.C.Shivananda Swamy, General Secretary, ESUSI
3. Mr.P.G.Murali Mohandhas, Vice President, ESUSI, Karnataka
4. Mr.M.Thangamudi, Vice President, ESUSI, Kerala
5. Mr.V.K.Sunilkumar, Vice President, ESUSI, Tamil Nadu
6. Mr.K.S.Sunil, Chairman, ESUSI, High Range Branch
7. Mr.C.G.Thammaiah, Chairman, ESUSI, Kodagu Branch
8. Mr.S.Jagannathan, Chairman, ESUSI, Nilgiris Branch
9. Mr.Johnson Prabhu, Chairman, ESUSI, Anamallais Branch

Short Recital of the Case

WHEREAS the terms and conditions of service of estate staff in the States of Karnataka, Kerala and Tamil Nadu are governed by the Memorandum of Settlement dated 06-08-2020 signed by the parties under Section 18(1) of the Industrial Disputes Act 1947;

WHEREAS the said settlement was in force for a period of 3 years from 01-01-2020 to 31-12-2022;

WHEREAS during the continuance of the period of the settlement, the Associations received Charter of Demands dated 02-11-2022 from the recognized majority Union, The Estates Staffs' Union of South India (ESUSI), for revision of the terms and conditions of service of estate Staff in the three States;

WHEREAS subsequent to the above, bipartite negotiations were held on between the parties on 22-02-2023, 02-05-2023 and 14-06-2023.

WHEREAS in the final round of talks held at Kochi, Kerala on 27-07-2023, a settlement on the following terms was arrived at.

Terms of Settlement

1. Grading of Estates:

It is agreed that the grading of estates into Large Estates, Medium Estates and Small Estates shall be in accordance with the classification in the Settlement dated 12th April 1976.

2. Grades and Scales of Pay:

Dearness Allowance as on 31-12-2022 up to 370.46 points of the average All India Consumer Price Index (ACPI) Number (Base 2001=100) under the settlement dated 06-08-2020 shall be merged with the basic salaries as on 31-12-2022; and the scales of pay will be re-drawn from 01-01-2023, as follows:

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Large Estates (All crops-All States):

General Grade:

Rs.17715/17815-180-19615-190-21515-EB-200-23515-210-25615-220-26715

Senior Grade A:

Rs.18165-190-20065-200-22065-EB-210-24165-220-26365-230-27515

Senior Grade B:

Rs.18400-215-20550-225-22800-EB-235-25150-245-27600-255-28875

Special Grade:

Rs.19695-245-22145-255-24695-EB-265-27345-275-30095-285-31520

Note: In the case of the General Grade, a probationer will start on Rs.17,715 and the period of probation shall not exceed one year.

Medium Estates (All crops-All States):

General Grade:

Rs.16690/16790-175-18540-185-20390-EB-195-22340-205-24390-215-25465

Senior Grade:

Rs.17145-180-18945-190-20845-EB-200-22845-210-24945-220-26045

Note: In the case of the General Grade, a probationer will start on Rs.16,690 and the period of probation shall not exceed one year.

Small Estates (All Crops – Kerala & Tamil Nadu):

General Grade:

Rs.16440-170-18140-EB-180-19940-190-21840-200-23840-210-24890

Senior Grade:

Rs.16790-175-18540-EB-185-20390-195-22340-205-24390-215-25465

(Note: Senior Grade for Heads of Departments Only)

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Small Estates (All Crops – Karnataka):

Small Estate A: General Grade:

Rs.16440-170-20690

Small Estate B: General Grade:

Rs.16555-170-18255-175-22630

Note: On Small Estates of 120 acres or above, the senior member of the staff, if he is required to exercise considerable degree of independent managerial responsibility, shall have the following Grade:

Rs.16910-170-21160

3. Fitment into the Revised Scales of Pay:

a) A staff shall be given an increase of 17.50% (Seventeen and a half per cent) on his/her basic salary inclusive of personal pay, if any, and the amount of Dearness Allowance drawn by him as on 31-12-2022 and fitted into the above applicable revised scale. If the resultant figure does not exactly coincide with an incremental step in the revised scale, the staff concerned will be fitted in the next incremental step.

b) During the period of the settlement, no staff will be stagnated and increment corresponding to the last step in the Grade will be given as personal pay, which will attract all benefits.

c) Any probationer who is at the start of his career and who gets the benefits mentioned above, will not be deemed to be confirmed in service as a result of the higher salary received by him. In such cases adjustment to the step in the Grade will not be made until he is confirmed on the expiry of the period of probation in the usual course.

4. Dearness Allowance:

a) The revised scales of pay mentioned in Clauses 2 and 3 above are equated to 370.46 points of the All-India Consumer Price Index (ACPI) (Base 2001=100). The Dearness Allowance shall be calculated at the following rates viz., Rs. 32/- per point for large estates and Rs. 28/- per point for medium and small estates respectively, over and above 370.46 points of ACPI.

b) The periodicity of adjustment will be as at present, namely, 1st January, 1st April, 1st July and 1st October on the average increase on the ACPI for the immediate penultimate quarter.

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c) First such adjustment shall be from 01-01-2023 for any variation from 370.46 points in the ACPI (Base 2001=100).

5. Automatic Progression:

Consequent to the revision of scales and the basic pay, steps for automatic progression wherever applicable will be as follows:

Automatic Progression

	Estate Office/ Factory/ Field Staff (From G.G. to SG-A)	Estate Office/ Factory/ Field Staff (From SG-A to SG-B)	Pharmacists/ Nurses (From SG-A to SG-B)	Technical Staff From SG-A to SG-B)	'C' Certificate Holders (From GG to SG-A)
	(Rs.)	(Rs.)	(Rs.)	(Rs.)	(Rs.)
Existing Steps	15940 in GG	16210 in SG-A with EB at 16480 in SG-B	16890 in SG-A with EB at 17430 in SG-B	15700 in SG-A with EB at 16480 in SG-B	15000 in GG
Revised Steps	20375	20665/21000	21465/22125	20065/21000	19255

6. Leave Travel Concession:

It is agreed that with effect from 01-01-2023 the Leave Travel Concession at the rate mentioned below shall be given once a year.

a) Staff in Senior Grade/s in Large and Medium Estates : Rs.4,000/-

b) Others : Rs.3,250/-

7. Annual Leave T.A:

With effect from 01-01-2023, the Annual Leave T.A. will be revised from the existing rate of Rs.7/-km to Rs.8.50/-km.

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8. Batta:

The rates of batta payable to staff members as per clause 8 of settlement dated 16-06-2017 read with clause 11 of settlement dated 06-08-2020 stand altered as follows:

a). For half a day	: Rs.300/-
b). For full day (not involving night stay)	: Rs.600/-
c). For full day (involving night stay outside the estate)	: Rs.1500/-
d). For full day (involving night stay where accommodation is provided by the employer)	: Rs.600

9. Travelling Allowance and Transport Charges on Retirement etc.:

For retirement on superannuation or discharge on medical grounds or in cases involving death of the staff members concerned, travelling and transport charges to cover expenses of both staff and, where it applies, their families will be paid at the rate of Rs.50/- per kilometer subject to a minimum of Rs. 3,000/- and maximum of Rs.10,000/-

10. Head Office Staff:

The benefits in respect of grades, fitment and D.A. will be paid on the same terms as above to Head Office Staff situated either inside or outside the plantation areas and in whose case, the UPASI/ESUSI Settlements have been implemented earlier.

11. Arrears:

The arrears of salary payable under this settlement will be paid on or before 30-11-2023.

12. General:

a) It is agreed that as far as recruitment of staff in rubber estates in the State of Kerala is concerned, the management assures that the entry level salary (Basic + VDA) of such staff will not be below the prevailing entry level, i.e. Basic + VDA of monthly rated workman in Rubber estates. This clause is only for the period of this settlement.

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b) Clause 8 [c] of ELRO-ESUSI settlement of 24th March 1948 prescribes that three days leave on full pay shall be allowed yearly to each member of the staff on the account of religious festivals, in accordance with the religious persuasion of each employee. Since the grant of national and festival holidays for employees is currently governed by the respective State Legislations on the subject, the parties hereby agree that the said clause 8 [c] of the settlement dated 24th March 1948 has become redundant and shall hereby stand rescinded.

c) The demands raised by the ESUSI, not specifically agreed to as above, are hereby withdrawn.

d) All other terms and conditions of service not specifically altered by this settlement will continue to be effective, subject to the operation of law. This settlement will not affect prejudicially, the terms and conditions presently enjoyed by any member of the Staff.

e) It is agreed that no general or industry-wide demands involving financial commitments on the part of the employers or any collective demands involving emoluments of Estate Staff will be raised by the Union during the period of this Settlement.

f) This settlement will be in force from **01-01-2023 to 31-03-2026** and shall continue to be binding until it is terminated by either of the parties to the settlement, in accordance with the provisions of law.

13. N.T.1 of 2000 – National Tribunal:

Though the aforementioned dispute jointly raised by UPASI and ESUSI has been taken for award by the Tribunal after hearing arguments of all parties, in the event an award is not passed and the dispute is re-posted, either of the parties will present this settlement before the National Tribunal with a prayer to adopt the terms of this settlement for passing an award in N.T.No.1 of 2000.

In Witness Whereof all parties hereby have signed this settlement on this the 27th day of July 2023, at Kochi, Kerala.

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Annexure - II

Illustrative examples showing fitment of staff in the revised basic salary scales with the revision increase from 01-01-2023 as per clause 3 (a) of the Settlement dated 27-07-2023:

I. Large Estates (All crops-All States): Staff 1 (General Grade):

	Rs.
Basic pay as on 31-12-2022 (Start of the scale)	13,800.00
D.A. as on 31-12-2022	1,358.70
Total	15,158.70
17.50% salary increase on the above	2,652.78
Revised Basic Pay on 01-01-2023	17,811.48
Fitment into revised scale from 01-01-2023 As the above amount is not an exact step in the new scale, fitment at the starting basic pay in the Scale	17,815.00
D.A. from 01-01-2023 (5.29 points x Rs.32)	169.30
Total salary	17,984.30
The annual increment will be added if it is given on 1st January every year. In other cases, the increment will be given from the date on which it is normally given to the staff concerned	

II. Large Estates (All crops-All States): Staff 2 (General Grade):

	Rs.
Basic pay as on 31-12-2022	16,900.00
D.A. as on 31-12-2022	1,358.70
Total	18,258.70
17.50% salary increase on the above	3,195.28
Revised Basic Pay on 01-01-2023	21,453.98
Fitment into revised scale from 01-01-2023 As the above amount is not an exact step in the new scale, fitment at the next incremental step in the Scale	21,515.00
D.A. from 01-01-2023 (5.29 points x Rs.32)	169.30
Total Salary	21,684.30
The annual increment will be added if it is given on 1st January every year. In other cases, the increment will be given from the date on which it is normally given to the staff concerned.	

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III. Large Estates (All crops-All States): Staff 3 (General Grade):

	Rs.
Basic pay as on 31-12-2022 (Maximum of Scale)	21,350.00
Personal Pay as on 31-12-2022, say	380.00
D.A. as on 31-12-2022	1,358.70
Total	23,088.70
17.50% salary increase on the above	4,040.52
Revised Basic Pay on 01-01-2023	27,129.22
Fitment into revised scale from 01-01-2023 As the revised basic exceeds the maximum of the revised scale, fitment at the maximum of the scale.	26,715.00
Personal Pay: If the excess amount, i.e. Rs.414.22 (27,129.22 – 26,715) is calculated in terms of annual increments, the nearest higher incremental step will be Rs.440 and this shall be given as a personal pay	440.00
	27,155.00
D.A. from 01-01-2023 (5.29 points x Rs.32)	169.30
Total	27,324.30

An amount equal to the last increment in the revised scale will be given if the usual date of increment is 1st January each year, and this amount will be added to the personal pay after the fitment. In other cases, the amount equal to the last increment will be given from the date on which the increment is normally given to the staff concerned.

IV. Large Estates (All crops-All States): Staff 4 – Probationer:

	Rs.
Basic pay as on 31-12-2022 of probationer appointed on, say, 01-04-2022, and confirmed on 01-04-2023	13.700.00
D.A. as on 31-12-2022	1,358.70
Total Salary as on 31-12-2023	15,058.70
17.50% salary increase on the above	2,635.27
Total Probationary basic pay as on 01-01-2023	17,693.97
However, his basic be fixed at	**17,715.00**
D.A. from 01-01-2023 (5.29 points x Rs.32)	169.30
Total Salary on 01-01-2023	**17,884.30**
Basic salary on confirmation, say on 1-4-2023 be fixed at	**Rs.17,815**

Note: It is advisable to fix the basic salary of probationer who was in service on or before 31-12-2022 at Rs.17,715 on 1-1-2023, as illustrated above. Further, on the date of confirmation, he/she be fixed at Rs.17,815.

The reason is that, if a staff was appointed on probation on or after 1-1-2023 on a basic of 13,700 in the old scale, he has to be straightaway fitted in the new scale at Rs.17,715.

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V. Medium Estates (All crops-All States): Staff 1 (General Grade):

	Rs.
Basic pay as on 31-12-2022	15,015.00
D.A. as on 31-12-2022	1,188.90
Total	16,203.90
17.50% salary increase on the above	2,835.68
Revised Basic Pay on 01-01-2023	19,039.58
Fitment into revised scale from 01-01-2023 As the above amount is not an exact step in the new scale, fitment at the next incremental step in the Scale	19,095.00
D.A. from 01-01-2023 (5.29 points x Rs.28)	148.10
Total	**19,243.10**
The annual increment will be added if it is given on 1st January every year. In other cases, the increment will be given from the date on which it is normally given to the staff concerned.	

Note: In the case of any staff in the Medium Estate, whose basic salary after fitment exceeds the maximum of his scale, the method of calculation given in the Illustration III (Large Estate –General Grade - Staff 3) will apply.

Similarly for probationer, the method specified in the illustration IV may be adopted.

VI. Small Estates (All crops-Kerala & Tamil Nadu): (Senior Grade):

	Rs.
Basic pay as on 31-12-2022	14,860.00
D.A. as on 31-12-2022	1,188.90
Total	16,048.90
17.50% salary increase on the above	2,808.56
Revised Basic Pay on 01-01-2023	18,857.46
Fitment into revised scale from 01-01-2023 As the above amount is not an exact step in the new scale, fitment at the next incremental step in the Scale	18,910.00
D.A. from 01-01-2023 (5.29 points x Rs.28)	148.10
Total	**19,058.10**
The annual increment will be added if it is given on 1st January every year. In other cases, the increment will be given from the date on which it is normally given to the staff concerned	

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VII. Small Estates (All crops-Karnataka): Small Estate 'A'-General Grade:

	Rs.
Basic pay as on 31-12-2022	13,220.00
D.A. as on 31-12-2022	1,188.90
Total	14,408.90
17.50% salary increase on the above	2,521.56
Revised Basic Pay on 01-01-2023	16,930.46
Fitment into revised scale from 01-01-2023 As the above amount is not an exact step in the new scale, fitment at the next incremental step in the Scale	16,950.00
D.A. from 01-01-2023 (5.29 points x Rs.28)	148.10
Total	**17,098.10**

The annual increment will be added if it is given on 1st January every year. In other cases, the increment will be given from the date on which it is normally given to the staff concerned.

Note: In the case of any staff in the Small Estate, whose basic salary after fitment exceeds the maximum of his scale, the method of calculation given in the Illustration III (Large Estate –General Grade - Staff 3) will apply.

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Calculation of Arrears:

Large Estates (All crops-All States): Staff 1 (General Grade) as mentioned in the Illustration-I above:

Illustration is prepared assuming that the arrears will be paid along with the salary for the month of July 2023.

Period	Basic	VDA	Total	Arrears
Jan-Mar 2023 Salary already paid as per previous settlement	13,800.00	1528.00	15,328.00	Rs.17,984.30 (–) Rs.15,328.00
Jan-Mar 2023 Salary payable as per new settlement	17,815.00	169.30	17,984.30	Rs.2,656.30 x 3 months **Rs.7,968.90**
Apr-June 2023 Salary already paid as per previous settlement	13,800.00	1,709.10	15,509.10	Rs.18,165.40 (-) Rs.15,509.10
Apr-June 2023 Salary payable as per new settlement	17,815.00	350.40	18,165.40	Rs.2,656.30 x 3 months **Rs.7,968.90**
			Total Arrears	**15,937.80**

Note: E.P.F. has to be deducted from the arrears, wherever applicable.

Similar method may be followed for all categories

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ANNEXURE - F2

Employee Expenses - 2023/24

Category	Technical Officer	Asst. Technical Officer	Switching Station Operator	Technical Staff	Other workers	Non Technical Staff	Total
							(Rs/Lakhs)
Basic, DA, PA, Adhoc & Spl. Pay	5.36	7.32	9.48	54.71	16.26	7.82	100.96
Fixed Overtime	0.00	2.98	3.95	20.04	3.19	2.10	32.26
Variable Overtime	0.00	0.17	2.38	8.25	3.91	1.23	15.93
Other Allowances & LTC	0.38	0.57	0.69	1.29	0.23	0.33	3.49
Arrears	0.60	1.14	1.81	6.56	1.53	0.80	12.44
Leave Encashment	0.24	0.33	0.43	0.69	0.00	0.10	1.78
Bonus	0.07	0.14	0.14	1.54	1.03	0.07	2.97
Contribution to Provident Fund	0.68	0.93	1.21	7.06	2.11	1.00	13.00
Contribution to Gratuity	0.27	0.37	0.47	2.74	0.81	0.28	4.93
Sub Total	**7.60**	**13.95**	**20.56**	**102.88**	**29.07**	**13.73**	**187.76**

LTC/LTA/Welfare/Other Allownce/Holiday Pay, etc		1.29

Total		**189.05**

Salary of Manager & Executive - Electricals		16.48
Share of Directors.Mgmt Staff Salaries		10.79
Sub Total		**27.27**

Grand Total		**216.32**

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